

FEDERAL MARITIME COMMISSION

DOCKET NO. 21-17

**OCEAN NETWORK EXPRESS PTE. LTD. and OCEAN NETWORK EXPRESS
(NORTH AMERICA) INC. –
POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(c)**

**OCEAN NETWORK EXPRESS, PTE. LTD. MOTION TO COMPEL
RESPONSES TO INTERROGATORIES AND REQUESTS
FOR PRODUCTION OF DOCUMENTS AND TO ORDER
NEW ANSWERS TO REQUESTS FOR ADMISSION**

Respondent Ocean Network Express, PTE. LTD. (ONE) hereby moves pursuant to 46 C.F.R. 502.147(a)(6) and 502.150 to compel the Bureau of Enforcement to respond to Interrogatories and Requests for the Production of Documents and to provide new and sufficient answers to Requests for Admission, all as identified below.

INTRODUCTION

As illustrated in this motion and the corresponding motion filed concurrently by Ocean Network Express (North America) Inc. (“ONE NA”), BOE has treated discovery requests as an exercise in gamesmanship, rather than an obligation to provide information in good faith.¹ Among other things, BOE has provided responses that do not correspond to the question asked, feigned misunderstanding of questions to avoid giving a meaningful answer,

¹ BOE’s responses were all served a day later than called for by the Schedule – i.e., April 6, 2022. Because the delays were small (in some cases about 20 minutes) and because ONE has not suffered any identifiable prejudice from BOE’s delay, we do not push the issue of BOE tardiness any further. We mention it only because it appears part of a pattern of delay (including delays in supplementation) and ONE is concerned that BOE will use the May 2 end of discovery as a device to foreclose ONE from obtaining the information to which it is entitled.

failed to look further than its collective noses in searching for information, declined to provide identified, responsive documents in its possession or control and failed to address the deficiencies identified to it by ONE in any reasonable manner.²

SPECIFIC INTERROGATORIES, REQUESTS FOR DOCUMENT PRODUCTION, AND REQUESTS FOR ADMISSIONS

In this section, ONE addresses the discovery requests as to which it seeks to compel adequate responses, separated into three main categories of response – interrogatories, requests for production of documents, and requests for admission. Within each group, we discuss the requests and responses essentially seriatim, but grouping together responses that share the same basic deficiency. ONE’s requests and BOE’s responses are set out verbatim and in full in Attachment A and are reproduced below only where useful as examples.

A. Responses to Interrogatories

1. Responses to Interrogatories 2, 3, 5-9, 19, 20, 23-27, 31, 33-39

Each of the ONE interrogatories and BOE responses listed in the heading is reproduced in full in Attachment A. For purposes of discussion, we quote here only a single, exemplar question and answer – to Interrogatory 8.

8. Identify precisely what BOE contends is ONE’s normal, customary and continuous business practice for purposes of this proceeding and all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

² As required by Rules 147 and 150, a Certificate of Consultation and Certificates of Service are appended as Attachment B and C, respectively.

As illustrated by Interrogatory 8, BOE objects to, and does not answer (or meaningfully answer), ONE's questions based on an unrecognized extension of the "work product" doctrine. That BOE-created objection is untenable. Indeed, it is directly contrary to the FMC Rules, which specifically provide that: "An interrogatory may relate to any matter that may be inquired into under § 502.141(e) and (f). An interrogatory is not objectionable merely because it asks for an opinion or contention that relates to fact or the application of law to fact." Each of the interrogatories identified above and quoted in Appendix A asks about BOE's contentions of fact or the application of law to fact. They are thus squarely within the scope of legitimate inquiry.

Further, the work product doctrine is, on its face, inapplicable to interrogatory answers. Rather, it applies only to documents and other tangible things. Fed. R. Civ. P. 26(b)(3) ("Ordinarily, a party may not discover ***documents and tangible things*** that are prepared in anticipation of litigation or for trial by or for another party or its representative (including the other party's attorney, consultant, surety, indemnitor, insurer, or agent)") (emphasis added).

ONE recognizes that such matters may sometimes be deferred to a later time, such as a prehearing conference. But the schedule in this case is highly compressed, involving neither a hearing nor a prehearing conference, so deferral would be inappropriate here.

For Interrogatory 3, BOE added a minor fillip that it had provided the requisite information in its responses to ONE's requests for admission. That is simply not the case, and certainly any, limited information provided in the response to requests for admission were far less than required by the Commission's Rules.

2. Response to Interrogatory 31

BOE's response to ONE's Interrogatory 31 is not responsive to the question asked. ONE asked about the text of other VOCCs' merchant clauses, but BOE in a peculiar *non sequitur*, responded instead about proceedings at the Commission. We further note that BOE's reference to information about private party litigation being available at the Commission's website is misleading, as most information about informal proceedings is not included there.

3. Responses to Interrogatories 4 and 28

BOE's responses to Interrogatories 4 and 28 are inadequate and indicate a failure either to make a good faith search or to fully answer the question. Both responses rely on the misleading claim that: "*Information sought involving private party litigation at the FMC is available to the general public in the "FMC Reading Room" at <https://www2.fmc.gov/readingroom/>.*" As noted in connection with Interrogatory 31, the FMC website does not, except in unusual circumstances, include information regarding proceedings other than "formal" dockets. Even if such information was available to the public, BOE has not made a reasonable effort to identify such proceedings – essentially saying do it yourself; don't bother us. That is not a valid objection.

B. Requests for Production of Documents

Document production from BOE has been miniscule and delayed. The privilege log, required by the Rules and the Presiding Officer's Order, was not provided until late in the day on April 19. Because ONE is just now reviewing the privilege log, it will defer moving to compel documents until it has had an opportunity to complete its review and attempt to confer with BOE (subject to not allowing BOE to run out the clock). There may well be

issues regarding documents for which BOE has not claimed privilege, but in the interest of efficiency we will address all documents, if necessary, in a subsequent motion.

C. Requests for Admission

4. Responses to Requests for Admission 5, 39-44, 49, 51

BOE pleaded ignorance to each of these requests. Any such claim that is simply untenable as the requests all seek information that BOE should be able to identify (and ONE did identify) in short order. Further, BOE in its responses to *requests for admission* repeatedly refers to them as “*interrogatories*” or “*questions*.” This suggests that BOE did not give much thought to the requests, and certainly did not conduct reasonable searches, but rather just cut and pasted its responses to other discovery requests. For example:

1. Response to Request for Admission 39. It should take only minimal time to confirm that bills of lading for ocean transportation are “maritime contracts” within the admiralty jurisdiction of the courts. Not only is this black letter law stated in hundreds of cases, it was stated in one of the very cases that BOE previously cited. This is neither reasonable inquiry nor a good faith effort to provide meaningful responses. Likewise, Request for Admission 40 should have been admitted, as both BOE and ONE have discussed cases so stating.

2. Response to Requests for Admission 41-42. It should take only moments for BOE to verify that the FMC has permitted complaints against agents of regulated parties and allowed agents to be deemed liable. We found some such cases in a brief LEXIS search.

3. Responses to Requests for Admissions 44, 49, and 51. These requests seek information regarding formal investigations by the FMC. BOE objects on the grounds of

confidentiality, but such proceedings are not at all confidential, and indeed are reported on the FMC's website and in its published decisions. Likewise, BOE's assertion that it can neither "confirm nor deny" such public investigations is patently false.

5. Response to Request For Admission 45

45. The question whether a common carrier violates the Shipping Act by seeking to recover charges due to the carrier from an agent of the shipper or the consignee is a matter of first impression.

Answer: BOE objects to the question as argumentative and calling for a legal conclusion. BOE objects to the questions as possibly calling for attorney work product. BOE objects to the question as vague and overly broad to make any meaningful determination.

BOE's response to this request for admission (not a question) is simply non-responsive and contrary to the FMC Rules. As discussed above with respect to BOE's fictitious "work product" claims, Rule 147(a)(1) clearly contemplates such a request and BOE's failure to provide a response is unjustified.

6. Responses to Requests for Admission 50, 56, 58-62.

Each of ONE's requests for admission and BOE responses is reproduced in full in Attachment A. We quote here only a single, exemplar question and answer – to Request for Admission 58:

58. An interpretation is neither an act nor an omission.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

In response to each of these Requests for Admissions, BOE asserted that has made reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE could have readily obtained this information but chose not to do so. Further, in most

cases, BOE provided internally inconsistent answers – simultaneously asserting insufficient information to admit or deny, while denying the request despite its alleged inability to do so.

Specific problems with individual responses include:

a. RFA 50. This is an extreme example of BOE's failure to conduct any search, much less a reasonable search. The Commission's Order cited one such case (involving Zim) and BOE has repeatedly discussed that case in subsequent filings.

b. RFA 56. BOE's response to this request, that it lacks information to admit or deny whether certain actions constitute a practice suggests that the proceeding was commenced without the good faith basis required by Rule 502.6(a). BOE is asserting against ONE that such actions **do** constitute a practice, but now says it does not know if they are.

c. RFA 58. BOE is fully aware that the FMC Rules state that a 46 U.S.C. 40112(c) claim must be based on "acts or omissions." Unless an interpretation is an act or omission, there can be no claim of a violation. This again indicates that BOE did not meet the requirement of Rule 502.6(a) before recommending to the Commission that it commence this investigation.

d. RFA 59. BOE here illuminates its again its failure to perform an adequate search. Multiple cases stating this proposition are readily identifiable in less than 15 minutes on LEXIS. ONE cited some in both the Petition for Reconsideration and the Motion to Dismiss.

e. RFA 60. Another case of no reasonable search. Putting the phrase "lack of privity" into LEXIS would have quickly turned up the Presiding Officer's own statement: "Respondent has not demonstrated that a lack of privity, even if established, would bar recovery." *Kobel v. Hapag-Lloyd AG*, 2011 FMC LEXIS 14 at *12 (ALJ 2011).

f. RFA 61-62. Any good faith search effort would have allowed BOE to admit or deny. Such cases are easily identified on LEXIS. And cases regarding RFA 62 have been discussed by both ONE and BOE in prior filings in this proceeding.

ARGUMENT

FMC Rule 150 authorizes the Presiding Officer to compel a response where there is a failure by the responder to make a disclosure, answer, or respond, including an evasive or incomplete disclosure, answer, or response. Likewise, Rule 147(a)(6) mandates that the Presiding Officer order an answer to a request for admission where none has been provided and authorizes her in the case of an insufficient response to order that the request be admitted or that a new response be served.³

For the reasons detailed above,⁴ BOE has provided insufficient responses to the enumerated interrogatories, requests for production of documents, and requests for admission.⁵ As above shown, BOE has repeatedly failed to answer questions or produce requested documents, has given non-responsive answers, has played word games to evade responding, and has conducted a search (if any) that is entirely insufficient. BOE's objections do not excuse it from providing responses. BOE's failure to adequately respond necessarily prejudices ONE, especially in light of the Commission's determination to

³ Although the Presiding Officer would be well within her rights to deem all requests admitted where BOE did not give a sufficient response, and ONE would support that result, ONE does not affirmatively request such a ruling, but rather seeks only revised, sufficient, and timely responses.

⁴ ONE could say much more about individual items but decided not to burden the Presiding Officer with a request for additional pages.

⁵ This is not to suggest that BOE adequately responded to all of the other interrogatories and requests for production of documents. Rather, we have limited the motion to those we think most important and egregious.

expedite this proceeding. “It is well established in federal practice that broad and sweeping objections to interrogatory and document requests are improper.” *Precision Pine & Timber v. United States*, 2001 U.S. Claims LEXIS 181, *20 (internal citations omitted).

Accordingly, the Presiding Officer should issue an order compelling BOE to answer the above-identified interrogatories and requests for admission and to conduct a new search for the identified document requests and produce them in full by a reasonable date so that ONE may avail itself of the brief remaining time it has to complete discovery.

CONSULTATION

As required by the Commission’s rules, ONE has attempted on several occasions to consult with BOE with respect to the deficiencies in its responses to discovery requests.

On April 14, 2022, ONE sent BOE a summary of the deficiencies of BOE’s responses to its discovery requests and requested that it supplement its responses no later than 5:00 on April 19, 2022. As of the filing of this Motion, ONE has heard nothing further from BOE. On April 19 shortly after 5:00, BOE produced additional documents and a privilege log, reflecting responsive communications that had been withheld. Shortly thereafter on April 19, counsel for ONE requested a telephone conference. BOE was not available until late in the day on April 20, and the conference did not result in any commitments by BOE. Given the short time that remains in the discovery schedule, ONE was compelled to file this motion.

DATED: April 20, 2022

Respectfully submitted,

/s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 20th day of April, 2022, a true and correct copy of the foregoing **Motion to Compel and Attached Appendices (Appendix A: Relevant BOE Responses to ONE Interrogatories, Requests for the Production of Documents, and Requests for Admissions; Appendix B: Certificate of Consultation, Requests for Admissions; Appendix C: Certificate of Service, Requests for Admissions; Appendix D: Certificate of Attempts to Confer; Appendix E: Certificate of Service, Interrogatories and Requests for Production of Documents)** were served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

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APPENDICES

APPENDIX A: Relevant BOE Responses to Discovery Requests

APPENDIX B: Certificate of Consultation

APPENDIX C: Certificate of Service (Requests for Admission)

APPENDIX D: Certificate of Attempts to Confer

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APPENDIX A

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BOE Responses to ONE Interrogatories

2. Identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support each allegation of the Order that ONE denied in whole or in part, including what allegation each piece of information supports.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R.

§502.141 and the Presiding Officer's scheduling order, as required.

3. To the extent that BOE denies, in whole or in part, any Request for Admission contained in ONE's Requests for Admission, all information (including facts, case law, statutes, regulations, and other precedents) upon which such Request is denied or denied in part.

Answer: BOE objects to this interrogatory as it is improper, impermissibly seeking counsel's mental impressions, case strategy and work product. Furthermore, BOE has provided answers and explanations in its answer to ONE's "Request for Admissions." Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

4. Identify any other proceedings at the FMC involving the same issue of a VOCC attempting to use its merchant clause to collect charges against an entity this not party to the bill of lading. The term "proceeding" for this purpose includes both formal proceedings (such as an Order of Investigation and Hearing) informal proceedings (such as a Pre-enforcement Notice, a Small Claims Complaint, a complaint to the Office of Consumer Affairs and Dispute Resolution Services), whether docketed or not, or a communication between the FMC and the VOCC.

Answer: BOE objects to the interrogatory as calling for confidential or protected information. BOE can neither confirm nor deny the existence or nonexistence of investigatory activities or materials. BOE objects to the interrogatory as impermissibly seeking confidential and privileged information protected by ADRA. BOE objects to the interrogatory as irrelevant. BOE objects to the interrogatory to the extent it impermissibly seeking counsel's mental impressions, case strategy and work product. BOE objects to the interrogatory as overbroad. Subject to and without waiving the foregoing objections, BOE is unaware of other formal proceeding(s) at the FMC involving the same issue of a VOCC attempting to use its merchant clause to collect charges against an entity that is not party to the bill of lading. BOE objects to providing any

information related to informal proceedings (such as a Pre-enforcement Notice, a Small Claims Complaint, a complaint to the Office of Consumer Affairs and Dispute Resolution Services), whether docketed or not, or a communication between the FMC and the VOCC as the information involving private party litigation at the FMC is available to the general public in the “FMC Reading Room” at <https://www2.fmc.gov/readingroom/>. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

5. If BOE contends that ONE not demanding payment from Greatway before it initiated the Texas Litigation is relevant to this proceeding, identify such relevance and all information that BOE believes supports that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

6. If BOE contends that the Commission should determine the merits of ONE’s claim in the Texas Litigation, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to show that the court would have found that Greatway was not liable for the demurrage and storage charges accrued under ONEYSAOU24000400 or ONEYSAOU24596300.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

7. If BOE contends that Greatway did not have a beneficial interest in the cargo moved under the above bills of lading and did not otherwise assent to be bound by ONE’s BOL Terms and Conditions, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

8. Identify precisely what BOE contends is ONE’s normal, customary and continuous business practice for purposes of this proceeding and all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

9. If BOE contends that ONE's definition of "Merchant" is unreasonable, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

19. If BOE contends that the Texas Litigation was not the only time in ONE's entire four-year history that it ever filed suit under its bill of lading against an entity that was not identified thereon as either shipper or consignee, identify each other instance BOE contends occurred or may have contained and all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

20. If BOE contends that, other than this incident with Greatway, ONE has ever sought to collect ocean freight or ancillary charges such as detention, demurrage or storage charges from a party that is not a shipper, consignee, or owner of the cargo on a straight (non-negotiable) bill of lading, except where the shipper or consignee has given ONE express authorization to do so, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

23. If BOE contends that the Commission has not allowed complainants to file complaints against agents of regulated entities, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the

foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

24. If BOE contends that the Commission has not allowed complainants to file complaints against agents of regulated entities, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

25. If BOE contends that the Commission has not allowed agents, in settlement or otherwise, to be deemed liable for the obligations of their principals, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

26. If BOE contends that the Commission has ever found that a regulated entity violated the Shipping Act of FMC regulations by, or taken action against, a regulated entity for, filing a complaint at the FMC naming an agent as a respondent, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

27. If BOE contends that the Commission has ever, before this proceeding, ordered an investigation of a VOCC for filing a claim, lawsuit, or complaint against an agent, either at the Commission or in court, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

28. Identify all prior cases where the FMC has addressed the question whether a VOCC violated the Shipping Act by seeking to recover charges due to the carrier from an agent of the shipper or the consignee.

Answer: Information sought involving private party litigation at the FMC is available to the general public in the “FMC Reading Room” at <https://www2.fmc.gov/readingroom/>. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

31. Identify all VOCCs other than ONE that have BOLs that do not have merchant clauses that on their face include entities other than the named shipper or named consignee within the term “merchant,” Including the text of each such merchant clause.

Answer: BOE is unaware of other formal proceeding(s) at the FMC involving the same issue of a VOCC attempting to use its merchant clause to collect charges against an entity that is not party to the bill of lading. Information sought involving private party litigation at the FMC is available to the general public in the “FMC Reading Room” at <https://www2.fmc.gov/readingroom/>. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

33. If BOE contends that other VOCCs have not sought to collect freight, detention, demurrage, or storage charges from entities not named as shipper or consignee on the BOL, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

34. If BOE contends that 46 U.S.C. 41102(c) applies to the collection of ocean freight, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

35. If BOE contends that the FMC has authority to require common carriers to change the substantive terms of their bills of lading, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

36. If BOE contends that the FMC has ever found a "practice" within the meaning of 46 U.S.C. 41102(c) and 46 C.F.R. 545.4 based on an interpretation, or on an interpretation and a single application or two applications, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

37. If BOE contends that industry practice, or what other entities of the same regulated type do, has not been deemed relevant to whether a practice is unreasonable, identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

38. Identify the number of violations BOE contends ONE committed for purposes of this proceeding, including an explanation of the methodology by which BOE calculated that number.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel's mental impressions, case strategy and work product. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer's scheduling order, as required.

39. If BOE For purposes of calculating civil penalties, if any, to be assessed against ONE, identify any prior violations by ONE that BOE believes should be considered.

contends that on January 7, 2019, Pacific Lumber did not acknowledge its responsibility for these payments stating, “we have some room here, for we only put 20% down...,” . identify all information (including facts, case law, statutes, regulations, and other precedents) upon which BOE would rely to support that position.

Answer: BOE objects to this interrogatory as premature and impermissibly seeking counsel’s mental impressions, case strategy and work product prior to the completion of discovery. Subject to and without waiving the foregoing objections, BOE will supplement in accordance with 46 C.F.R. §502.141 and the Presiding Officer’s scheduling order, as required.

BOE Responses to ONE Requests for Admissions

39. Bills of lading are maritime contracts subject to federal maritime law and the admiralty jurisdiction of the federal courts.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

40. Courts have held that agents may in some cases be liable for the obligations of their principals.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

41. The Commission has allowed complainants to file complaints against agents of regulated entities.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

42. The Commission has allowed agents, in settlement or otherwise, to be deemed liable for the obligations of their principals.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

43. The Commission has never taken action against a regulated entity for filing a complaint at the FMC naming an agent as a respondent.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion .

44. The Commission has never, before this proceeding, ordered an investigation of an ocean common carrier for filing a claim against an agent, either at the Commission or in court.

Answer: BOE objects to the interrogatory as calling for confidential or protected information. BOE can neither confirm nor deny the existence or nonexistence of investigatory activities or materials. BOE objects to the interrogatory as impermissibly seeking confidential and privileged information protected by ADRA. BOE objects to the interrogatory as irrelevant. BOE objects to the interrogatory to the extent it impermissibly seeking counsel's mental impressions, case strategy and work product. BOE objects to the interrogatory as overbroad.

45. The question whether a common carrier violates the Shipping Act by seeking to recover charges due to the carrier from an agent of the shipper or the consignee is a matter of first impression.

Answer: BOE objects to the question as argumentative and calling for a legal conclusion. BOE objects to the questions as possibly calling for attorney work product. BOE objects to the question as vague and overly broad to make any meaningful determination.

49. The Commission has never commenced an investigation of any ocean common carriers that have merchant clauses described in Request 48.

Answer: BOE objects to the question as calling for confidential or protected information. BOE can neither confirm nor deny the existence or nonexistence of investigatory activities or materials. BOE objects to the interrogatory as impermissibly seeking confidential and privileged information protected by ADRA. BOE objects to the interrogatory as irrelevant. BOE objects to the interrogatory to the extent it impermissibly seeking counsel's mental impressions, case strategy and work product. BOE objects to the interrogatory as overbroad.

50. Other ocean common carriers have sought to collect freight, detention, demurrage, or storage charges from entities not named as shipper or consignee on the bill of lading.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE objects to the question as irrelevant.

51. The Commission has never commenced an investigation of any ocean common carrier other than ONE for seeking to collect freight, detention, demurrage or storage charges from entities not named as shipper or consignee on the bill of lading.

Answer: BOE objects to the interrogatory as calling for confidential or protected information. BOE can neither confirm nor deny the existence or nonexistence of investigatory activities or materials. BOE objects to the interrogatory as impermissibly seeking confidential and privileged

information protected by ADRA. BOE objects to the interrogatory as irrelevant. BOE objects to the interrogatory to the extent it impermissibly seeking counsel's mental impressions, case strategy and work product. BOE objects to the interrogatory as overbroad.

56. The Commission has never found a “practice” within the meaning of 46 U.S.C. 41102(c) and 46 C.F.R. 545.4 based on an interpretation, or on an interpretation and a single application or two applications.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative asking for a legal conclusion.

58. An interpretation is neither an act nor an omission.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

59. Industry practice, or what other entities of the same regulated type do, has been deemed relevant to whether a practice is unreasonable.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

60. Under FMC precedent, lack of privity does not necessarily preclude recovery.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE objects to the question as vague and overly broad to make any meaningful determination. BOE objects to the question as argumentative and asking for a legal conclusion.

61. FMC precedent allows charges to be assessed against agents of a regulated entity.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE objects to the question as

vague and overly broad to make any meaningful determination. BOE objects to the question as argumentative and asking for a legal conclusion.

62. FMC precedent allows indirect users of a service or facility to be charged therefor.

Answer: Lack of knowledge or information. BOE has made a reasonable inquiry and the information it knows is insufficient to enable it to admit or deny. BOE denies and objects to the question as vague and overly broad to make any meaningful determination. BOE denies and objects to the question as argumentative and asking for a legal conclusion.

APPENDIX B

CERTIFICATE OF CONSULTATION

The undersigned certifies that on the following dates attempts were made to consult with the Bureau of Enforcement was made with respect to the deficiencies in its responses to Ocean Network Express, PTE. LTD. interrogatories, requests for the production of documents, and requests for admissions:

April 12, 2022

April 14, 2022

April 19, 2022

April 20, 2022

The Parties conferred on April 20, 2022.

DATED: April 20, 2022

BY: /s/



Rebecca A. Fenneman

Counsel for Ocean Network Express, PTE. LTD.

APPENDIX C

CERTIFICATE OF SERVICE

I certify that on the 18th day of March, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

As required by Rule 148 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 CFR 502.148, the foregoing documents have also been served on the Secretary of the Federal Maritime Commission.

SECRETARY OF THE FEDERAL MARITIME COMMISSION:

William Cody, Secretary
Federal Maritime Commission
800 N. Capitol St., NW
Washington, DC 20573
202-523-5725
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ATTORNEYS FOR THE BUREAU OF ENFORCEMENT:

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/s/ *Rebecca A. Fenneman*

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Jeffrey/Fenneman Law + Strategy, PLLC

700 12th Street, NW Suite 700

Washington, DC 20005

APPENDIX D

CERTIFICATE OF ATTEMPT TO CONFER

The undersigned certifies that on the following dates attempts were made to confer with the Bureau of Enforcement with respect to the deficiencies in its responses to Ocean Network Express, PTE. LTD.'s requests for admissions:

April 12, 2022

April 14, 2022

April 19, 2022

April 20, 2022

The Parties conferred on April 20, 2022.

DATED: April 20, 2022

BY: /s/


Rebecca A. Fenneman

Counsel for Ocean Network Express, PTE. LTD.

APPENDIX E

CERTIFICATE OF SERVICE

I certify that on the 18th day of March, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

As required by Rule 148 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 CFR 502.148, the foregoing documents have also been served on the Secretary of the Federal Maritime Commission.

SECRETARY OF THE FEDERAL MARITIME COMMISSION:

William Cody, Secretary
Federal Maritime Commission
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Washington, DC 20573
202-523-5725
Secretary@fmc.gov

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